ANTI DEFECTION LAW

FROM 1967 INSTABILITY TO → GROUNDS AND MEMBER-TYPE RULES → POLITICAL PARTY, LEGISLATURE PARTY → MERGER, DELETED SPLIT AND → PRESIDING-OFFICER PROCESS, NATURAL JUSTICE → RESIGNATION, DISQUALIFICATION AND THE

Read the thick spine rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure: the grey E card is optional enrichment only and never repairs missing core content.

● PRIMARY CORE FLOW ● SUBORDINATE EXTRA ● APPROVAL / REVIEW

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

Approval: FALSE • Pending user review • active generation g3 • explicit approval of this exact generation is required • all prior artifacts unchanged

00

STAGE 00 FROM 1967 INSTABILITY TO THE 52ND AND 91ST AMENDMENT DESIGN

FROM 1967 INSTABILITY TO THE 52ND AND 91ST AMENDMENT · ROOT QUESTION · HOW CAN PARTY-GOVERNMENT STABILITY BE PROTECTED WITHOUT EXTINGUISHING LEGISLATIVE · 1967 DEFECTIONS · COMMITTEE ON DEFECTIONS · 52ND AMMENDMENT ACT 1985. · TENTH SCHEDULE EFFECTIVE 1 MARCH 1985. · 52ND AMENDMENT

ROOT QUESTION → How can party-government stability be protected without extinguishing legislative judgment? → 1967 defections → Committee on Defections → 52nd Amendment Act 1985. → Tenth Schedule effective 1 March 1985. → 52ND AMENDMENT

CONSTITUTIONAL BASIS / ARTICLE
- ROOT QUESTION
- How can party-government stability be protected without extinguishing legislative judgment?
- 1967 defections → Committee on Defections → 52nd Amendment Act 1985.
- Tenth Schedule effective 1 March 1985.
- 52ND AMENDMENT

POWER / PROCEDURE
- Articles 101, 102, 190, 191 + Tenth Schedule.
- 91ST AMENDMENT split defence deleted
- ministry-size caps
- Articles 75(1B), 164(1B), 361B office disabilities.
- CURRENT PARAGRAPH MAP

CHECK / LIMIT
- 1 definitions
- 2 grounds
- 3 omitted
- 4 merger
- 5 presiding exemption

FEDERAL / RIGHTS IMPACT
- 6 decision
- 7 invalid court bar
- 8 rules.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: 5 presiding exemption | 6 decision | 7 invalid court bar | 8 rules.

01

STAGE 01 GROUNDS AND MEMBER-TYPE RULES

GROUNDS AND MEMBER-TYPE RULES · PARTY MEMBER VOLUNTARILY GIVES UP MEMBERSHIP · OR VOTES/ABSTAINS CONTRARY TO DIRECTION WITHOUT PRIOR PERMISSION, UNLESS · INDEPENDENT MEMBER JOINING A POLITICAL PARTY AFTER ELECTION · NO SIX-MONTH WINDOW. · NOMINATED MEMBER MAY JOIN WITHIN SIX MONTHS FROM TAKING · JOINING AFTER THAT PERIOD · RAVI S. NAIK (1994) VOLUNTARILY GIVING UP IS WIDER

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
PARTY MEMBER voluntarily gives up membership OR votes/abstains contrary to direction without prior permission, unless condoned within fifteen days.	INDEPENDENT MEMBER joining a political party after election → disqualification. No six-month window.	NOMINATED MEMBER may join within six months from taking the seat joining after that period → disqualification.	Ravi S. Naik (1994) voluntarily giving up is wider than formal resignation and may be inferred from conduct. TRAP dissenting speech alone is not automatically paragraph 2(1)(b) voting conduct.

CONSTITUTIONAL BASIS / ARTICLE
- PARTY MEMBER voluntarily gives up membership
- OR votes/abstains contrary to direction without prior permission, unless condoned within fifteen days.

POWER / PROCEDURE
- INDEPENDENT MEMBER joining a political party after election → disqualification.
- No six-month window.

CHECK / LIMIT
- NOMINATED MEMBER may join within six months from taking the seat
- joining after that period → disqualification.

FEDERAL / RIGHTS IMPACT
- Ravi S. Naik (1994) voluntarily giving up is wider than formal resignation and may be inferred from conduct.
- TRAP dissenting speech alone is not automatically paragraph 2(1)(b) voting conduct.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TRAP dissenting speech alone is not automatically paragraph 2(1)(b) voting conduct.

02

STAGE 02 POLITICAL PARTY, LEGISLATURE PARTY AND THE EXACT WHIP TEST

POLITICAL PARTY, LEGISLATURE PARTY AND THE EXACT WHIP TEST · ORIGINAL POLITICAL PARTY PARTY TO WHICH THE MEMBER BELONGS · LEGISLATURE PARTY · HOUSE MEMBERS BELONGING TO THE SAME POLITICAL PARTY. · WHIP TEST AUTHORISED PARTY DIRECTION · VOTE OR ABSTENTION · NO PRIOR PERMISSION · NO CONDONATION WITHIN FIFTEEN DAYS.

ORIGINAL POLITICAL PARTY to which the member belongs for Schedule purposes.

LEGISLATURE PARTY → House members belonging to the same political party. → WHIP TEST authorised party direction → vote or abstention

CONSTITUTIONAL BASIS / ARTICLE
- ORIGINAL POLITICAL PARTY party to which the member belongs for Schedule purposes.
- LEGISLATURE PARTY

POWER / PROCEDURE
- House members belonging to the same political party.
- WHIP TEST authorised party direction → vote or abstention

CHECK / LIMIT
- no prior permission → no condonation within fifteen days.
- Subhash Desai (2023) the political party, not a legislature-party faction acting alone, authorises the whip/leader for Tenth Schedule purposes.

FEDERAL / RIGHTS IMPACT
- CURRENT LAW direction may reach ordinary votes under the text.
- PROPOSAL restrict whips to confidence, no-confidence, Money Bills or core manifesto matters.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: PROPOSAL restrict whips to confidence, no-confidence, Money Bills or core manifesto matters.

03

STAGE 03 MERGER, DELETED SPLIT AND THE NARROW PRESIDING-OFFICER EXEMPTION

MERGER, DELETED SPLIT AND THE NARROW PRESIDING-OFFICER EXEMPTION · PARAGRAPH 3 ONE-THIRD SPLIT DEFENCE OMITTED BY THE 91ST · PARAGRAPH 4 ORIGINAL POLITICAL PARTY MERGER + NOT LESS · PROTECTED CHOICE TO JOIN MERGER OR OPERATE AS SEPARATE · INTERPRETIVE CAUTION TWO-THIRDS LEGISLATORS CANNOT BE WRITTEN AS A · ORIGINAL-PARTY AND DEEMING PROVISIONS REMAIN CENTRAL AND LIVE DISPUTES · PARAGRAPH 5 NARROW EXEMPTION FOR SPECIFIED PRESIDING OFFICERS ON · SPEAKER NEUTRALITY ASPIRATION DOES NOT CREATE A GENERAL EXEMPTION

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
PARAGRAPH 3 one-third split defence omitted by the 91st Amendment. PARAGRAPH 4 original political party merger + not less than two-thirds of legislature party agree	protected choice to join merger or operate as separate group under the text. INTERPRETIVE CAUTION two-thirds legislators cannot be written as a free-standing permission to switch parties	original-party and deeming provisions remain central and live disputes must be qualified. PARAGRAPH 5 narrow exemption for specified presiding officers on giving up/resigning party subject to exact office and timing conditions.	Speaker neutrality aspiration does not create a general exemption for every office-holder. PARAGRAPH 3 one-third split defence omitted by the 91st Amendment.

CONSTITUTIONAL BASIS / ARTICLE
- PARAGRAPH 3 one-third split defence omitted by the 91st Amendment.
- PARAGRAPH 4 original political party merger + not less than two-thirds of legislature party agree

POWER / PROCEDURE
- protected choice to join merger or operate as separate group under the text.
- INTERPRETIVE CAUTION two-thirds legislators cannot be written as a free-standing permission to switch parties

CHECK / LIMIT
- original-party and deeming provisions remain central and live disputes must be qualified.
- PARAGRAPH 5 narrow exemption for specified presiding officers on giving up/resigning party subject to exact office and timing conditions.

FEDERAL / RIGHTS IMPACT
- Speaker neutrality aspiration does not create a general exemption for every office-holder.
- PARAGRAPH 3 one-third split defence omitted by the 91st Amendment.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Speaker neutrality aspiration does not create a general exemption for every office-holder.

04

STAGE 04 PRESIDING-OFFICER PROCESS, NATURAL JUSTICE AND JUDICIAL REVIEW

PRESIDING-OFFICER PROCESS, NATURAL JUSTICE AND JUDICIAL REVIEW · FIRST INSTANCE · SPEAKER/CHAIRMAN DECIDES; IF THAT OFFICER IS CONCERNED, HOUSE ELECTS · PROCESS PETITION · REASONED DECISION · SEAT CONSEQUENCE. · KIHOTO HOLLOHAN (1992) PRESIDING OFFICER ACTS AS TRIBUNAL; PARAGRAPH 7 · LIMITED JUDICIAL REVIEW SURVIVES FOR JURISDICTIONAL ERROR, MALA FIDES

FIRST INSTANCE → Speaker/Chairman decides; if that officer is concerned, House elects another member. → PROCESS petition → maintainability/facts → notice → reply/evidence → hearing → reasoned decision → seat consequence. → Kihoto Hollohan (1992) presiding officer acts as tribunal; paragraph 7 invalid for lack of ratification

CONSTITUTIONAL BASIS / ARTICLE
- FIRST INSTANCE
- Speaker/Chairman decides; if that officer is concerned, House elects another member.

POWER / PROCEDURE
- PROCESS petition → maintainability/facts → notice → reply/evidence → hearing
- reasoned decision → seat consequence.

CHECK / LIMIT
- Kihoto Hollohan (1992) presiding officer acts as tribunal; paragraph 7 invalid for lack of ratification
- limited judicial review survives for jurisdictional error, mala fides and natural justice.

FEDERAL / RIGHTS IMPACT
- Keisham Meghachandra Singh (2020) absent exceptional circumstances, petitions should ordinarily be decided within three months.
- LIMIT courts ordinarily do not replace the Speaker as first-instance fact finder.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: LIMIT courts ordinarily do not replace the Speaker as first-instance fact finder.

05

STAGE 05 RESIGNATION, DISQUALIFICATION AND THE 91ST-AMENDMENT OFFICE BARS

RESIGNATION, DISQUALIFICATION AND THE 91ST-AMENDMENT OFFICE BARS · CHRONOLOGY ALLEGED DEFECTION · SPEAKER DECISIONS · JUDICIAL REVIEW · SHRIMANTH BALASAHEB PATIL (2019) RESIGNATION DOES NOT ERASE ANTECEDENT · SPEAKER CANNOT ADD AN EXTRA RE-ELECTION BAR BEYOND CONSTITUTIONAL · DIRECT EFFECT LOSS OF HOUSE MEMBERSHIP UNDER ARTICLES 102(2)/191(2). · OFFICE DISABILITIES

CHRONOLOGY alleged defection → petition → resignation → Speaker decisions → judicial review. → Shrimanth Balasaheb Patil (2019) resignation does not erase antecedent disqualification → Speaker cannot add an extra re-election bar beyond constitutional text. → DIRECT EFFECT loss of House membership under Articles 102(2)/191(2). → OFFICE DISABILITIES

CONSTITUTIONAL BASIS / ARTICLE
- CHRONOLOGY alleged defection → petition → resignation → Speaker decisions → judicial review.
- Shrimanth Balasaheb Patil (2019) resignation does not erase antecedent disqualification

POWER / PROCEDURE
- Speaker cannot add an extra re-election bar beyond constitutional text.
- DIRECT EFFECT loss of House membership under Articles 102(2)/191(2).

CHECK / LIMIT
- OFFICE DISABILITIES
- Articles 75(1B), 164(1B), 361B

FEDERAL / RIGHTS IMPACT
- minister/remunerative-political-post bar for the constitutionally defined period.
- Tenth Schedule disqualification is not a criminal conviction or universal public-office ban.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Tenth Schedule disqualification is not a criminal conviction or universal public-office ban.

06

STAGE 06 CASE-LAW CHRONOLOGY AND CONTROLLED PROPOSITIONS

CASE-LAW CHRONOLOGY AND CONTROLLED PROPOSITIONS · CASE SPINE · KIHOTO HOLLOHAN (1992) · SCHEDULE UPHELD; PARAGRAPH 7 INVALID; REVIEW SURVIVES. · RAVI S. NAIK (1994) · VOLUNTARY GIVING UP MAY BE INFERRED FROM CONDUCT. · G. VISWANATHAN (1996) · EXPULSION DOES NOT ERASE DEEMED PARTY BELONGING.

CASE SPINE → Kihoto Hollohan (1992) → Schedule upheld; paragraph 7 invalid; review survives. → Ravi S. Naik (1994) → voluntary giving up may be inferred from conduct. → G. Viswanathan (1996) → expulsion does not erase deemed party belonging. → Rajendra Singh Rana (2007) → inaction cannot protect an unsupported split claim.

CONSTITUTIONAL BASIS / ARTICLE
- CASE SPINE
- Kihoto Hollohan (1992) → Schedule upheld; paragraph 7 invalid; review survives.
- Ravi S. Naik (1994) → voluntary giving up may be inferred from conduct.

POWER / PROCEDURE
- G. Viswanathan (1996) → expulsion does not erase deemed party belonging.
- Rajendra Singh Rana (2007) → inaction cannot protect an unsupported split claim.
- Nabam Rebia (2016) → removal-notice restriction; correctness later referred.

CHECK / LIMIT
- Shrimanth Balasaheb Patil (2019) → resignation does not erase prior defection.
- Keisham Meghachandra Singh (2020) → ordinary three-month outer limit.
- Subhash Desai (2023) → political party authorises whip; institutional roles separated.

FEDERAL / RIGHTS IMPACT
- G. Viswanathan (1996) → expulsion does not erase deemed party belonging.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Subhash Desai (2023) → political party authorises whip; institutional roles separated.

07

STAGE 07 DELAY, JUDICIAL REMEDIES AND CURRENT DOCTRINAL CONTROL

DELAY, JUDICIAL REMEDIES AND CURRENT DOCTRINAL CONTROL · TENTH SCHEDULE CONTAINS NO EXPRESS DEADLINE. · JUDICIAL CONTROL · KIHOTO HOLLOHAN (1992) · ORDINARILY REVIEW AFTER DECISION. · RAJENDRA SINGH RANA (2007) · COURT MAY CORRECT DISABLING INACTION. · KEISHAM MEGHACHANDRA SINGH (2020)

Tenth Schedule contains no express deadline.

JUDICIAL CONTROL → Kihoto Hollohan (1992) → ordinarily review after decision. → Rajendra Singh Rana (2007) → court may correct disabling inaction.

CONSTITUTIONAL BASIS / ARTICLE
- Tenth Schedule contains no express deadline.
- JUDICIAL CONTROL
- Kihoto Hollohan (1992) → ordinarily review after decision.

POWER / PROCEDURE
- Rajendra Singh Rana (2007) → court may correct disabling inaction.
- Keisham Meghachandra Singh (2020) → ordinarily three months from filing, absent exceptional circumstances supported by reasons.
- Telangana judgment (2025) → case-specific three-month direction.

CHECK / LIMIT
- PENDING DOCTRINE
- Subhash Desai (2023) referred Nabam Rebia (2016) to seven judges.
- No verified later merits ruling by 28 August 2026.

FEDERAL / RIGHTS IMPACT
- TRAP constitutional silence is not unlimited delay; a judicial norm is not enacted text.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TRAP constitutional silence is not unlimited delay; a judicial norm is not enacted text.

08

STAGE 08 NABAM REBIA (2016), SUBHASH DESAI (2023) AND DISTRIBUTED INSTITUTIONAL AUTHORITY

NABAM REBIA (2016), SUBHASH DESAI (2023) AND DISTRIBUTED INSTITUTIONAL · NABAM REBIA (2016) · SPEAKER FACING A PENDING REMOVAL NOTICE WAS HELD DISABLED · PENDING QUALIFICATION · SUBHASH DESAI (2023) REFERRED CORRECTNESS OF THAT RULE TO · DO NOT WRITE NABAM REBIA (2016) AS FINALLY OVERRULED. · SUBHASH DESAI (2023) POLITICAL PARTY AUTHORISES WHIP · SPEAKER DETERMINES PARTY IDENTITY FOR SCHEDULE PURPOSE

Nabam Rebia (2016)

Speaker facing a pending removal notice was held disabled from deciding defection petitions. → PENDING QUALIFICATION → Subhash Desai (2023) referred correctness of that rule to a seven-judge bench.

CONSTITUTIONAL BASIS / ARTICLE
- Nabam Rebia (2016)
- Speaker facing a pending removal notice was held disabled from deciding defection petitions.
- PENDING QUALIFICATION
- Subhash Desai (2023) referred correctness of that rule to a seven-judge bench.

POWER / PROCEDURE
- Do not write Nabam Rebia (2016) as finally overruled.
- Subhash Desai (2023) political party authorises whip
- Speaker determines party identity for Schedule purpose
- ECI symbol proceeding is separate

CHECK / LIMIT
- Governor cannot decide intra-party leadership.
- DISTRIBUTED ROLES
- Speaker → defection
- ECI → symbol/order field

FEDERAL / RIGHTS IMPACT
- Governor → constitutional functions
- court → review.
- TRAP floor test, symbol dispute and defection petition answer different legal questions.

MECHANISM / VERDICT — Subhash Desai (2023) referred correctness of that rule to a seven-judge bench.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TRAP floor test, symbol dispute and defection petition answer different legal questions.

09

STAGE 09 DEMOCRATIC BALANCE, COMPARISON AND REFORM CHOICES

DEMOCRATIC BALANCE, COMPARISON AND REFORM CHOICES · GAINS REDUCES OPEN FLOOR-CROSSING · PROTECTS MANDATE · SUPPORTS GOVERNMENT STABILITY. · COSTS BROAD WHIP SUPPRESSES DELIBERATION · SPEAKER INCENTIVES · STRATEGIC DELAY MERGER ENGINEERING · RESIGNATION TACTICS

GAINS reduces open floor-crossing	protects mandate	supports government stability.	
RPA → statutory grounds/procedure	privilege → House discipline symbol dispute → ECI field.		
REFORM OPTIONS narrow whip	independent tribunal/ECI-advice model	statutory time limit reasoned public procedure	neutral presiding-office safeguards.

CONSTITUTIONAL BASIS / ARTICLE
- GAINS reduces open floor-crossing
- protects mandate
- supports government stability.
- COSTS broad whip suppresses deliberation
- Speaker incentives

POWER / PROCEDURE
- strategic delay merger engineering
- resignation tactics
- weakened committee scrutiny.
- Tenth Schedule → Speaker/Chairman.
- Articles 102(1)/191(1) post-election question → President/Governor on ECI opinion.

CHECK / LIMIT
- RPA → statutory grounds/procedure
- privilege → House discipline symbol dispute → ECI field.
- REFORM OPTIONS narrow whip
- independent tribunal/ECI-advice model
- statutory time limit reasoned public procedure

FEDERAL / RIGHTS IMPACT
- neutral presiding-office safeguards.
- STATUS these are proposals unless enacted or judicially ordered in a particular case.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: STATUS these are proposals unless enacted or judicially ordered in a particular case.

10

STAGE 10 VERIFIED PYQS AND EXECUTABLE ANSWER ARCHITECTURE

VERIFIED PYQS AND EXECUTABLE ANSWER ARCHITECTURE · VERIFIED PYQS · 2022 PRELIMS Q16 · NOMINATED-MEMBER WINDOW + NO EXPRESS DECISION TIME-FRAME; ANSWER B. · 2025 PRELIMS Q88 · SPEAKER/CHAIRMAN DECIDER + POLITICAL PARTY APPEARS; ANSWER D. · 2023 GS-II Q5 · STATE PRESIDING OFFICERS, IMPARTIALITY AND BEST DEMOCRATIC PRACTICES.

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
VERIFIED PYQS 2022 Prelims Q16 → nominated-member window + no express decision time-frame; answer B.	2025 Prelims Q88 → Speaker/Chairman decider + political party appears; answer D. 2023 GS-II Q5 → State presiding officers, impartiality and best democratic practices.	PRELIMS FILTER member type → conduct → period → threshold → decider → review. MAINS SPINE history → paragraph 2 grounds → paragraph 4 defence → paragraph 6 process	judicial review and delay → resignation/office bars → evaluation → reform. COMPRESSION retain exact text + one controlling case + mechanism + qualification + verdict.

CONSTITUTIONAL BASIS / ARTICLE
- VERIFIED PYQS
- 2022 Prelims Q16 → nominated-member window + no express decision time-frame; answer B.

POWER / PROCEDURE
- 2025 Prelims Q88 → Speaker/Chairman decider + political party appears; answer D.
- 2023 GS-II Q5 → State presiding officers, impartiality and best democratic practices

CHECK / LIMIT
- PRELIMS FILTER member type → conduct → period → threshold → decider → review.
- MAINS SPINE history → paragraph 2 grounds → paragraph 4 defence → paragraph 6 process

FEDERAL / RIGHTS IMPACT
- judicial review and delay → resignation/office bars → evaluation → reform.
- COMPRESSION retain exact text + one controlling case + mechanism + qualification + verdict.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: COMPRESSION retain exact text + one controlling case + mechanism + qualification + verdict.

11

STAGE 11 UPSC TRAPS, VERIFIED PYQS AND QUALIFIED ANSWER SYNTHESIS

UPSC TRAPS, VERIFIED PYQS AND QUALIFIED ANSWER SYNTHESIS · PRELIMS FIREWALL · 52ND CREATED · 91ST TIGHTENED · SPLIT DELETED · MERGER TWO-THIRDS GIVING UP WIDER THAN RESIGNATION · INDEPENDENT NO WINDOW NOMINATED SIX MONTHS · CONDONATION FIFTEEN DAYS

PRELIMS FIREWALL → 52nd created → 91st tightened → split deleted → merger two-thirds giving up wider than resignation

CONSTITUTIONAL BASIS / ARTICLE
- PRELIMS FIREWALL
- 52nd created
- 91st tightened
- split deleted
- merger two-thirds giving up wider than resignation

POWER / PROCEDURE
- independent no window nominated six months
- condonation fifteen days
- Speaker first
- judicial review survives
- defection not crime.

CHECK / LIMIT
- VERIFIED ROUTES
- 2022 Prelims → nominated members.
- 2025 Prelims → political-party and Tenth Schedule distinction.
- 2023 GS-II supporting route → presiding-officer impartiality.
- MAINS SPINE history → grounds/member types → party/whip

FEDERAL / RIGHTS IMPACT
- merger → process/review/delay → resignation/office bars
- institutional conflicts → stability–freedom balance → bounded reform.
- VERDICT stability needs discipline, but democratic legitimacy needs a narrower whip, neutral adjudication and enforceable decision time.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: VERDICT stability needs discipline, but democratic legitimacy needs a narrower whip, neutral adjudication and enforceable decision time.

E

EXTRA SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT · 52ND AMENDMENT ACT, 1985 ADDED THE TENTH SCHEDULE (AMENDING · 91ST AMENDMENT ACT, 2003 DELETED THE "SPLIT" EXCEPTION (WHICH) · MERGER — WHERE THE ORIGINAL POLITICAL PARTY MERGES AND · PRESIDING OFFICER WHO GIVES UP PARTY MEMBERSHIP ON TAKING · THE "SPLIT" EXCEPTION (1/3 MEMBERS) WAS REMOVED BY THE · DECIDED BY THE PRESIDING OFFICER (SPEAKER/CHAIRMAN) OF THE HOUSE. · KIHOTO HOLLOHAN (1992) V. ZACHILLHU (1992)

OPTIONAL DOCTRINE / CASE
- 52nd Amendment Act, 1985 added the Tenth Schedule (amending Arts 101, 102, 190, 191) — the
- 91st Amendment Act, 2003 deleted the "split" exception (which had protected 1/3–strength splits).
- Merger — where the original political party merges and not less than 2/3 of the legislature party agree, engaging paragraph 4's deeming rule.
- Presiding officer who gives up party membership on taking office (dignity of the chair).

ADVANCED LIMIT
- NOTE: The "split" exception (1/3-members) was REMOVED by the 91st Amendment (2003) — so only merger remains.
- Decided by the Presiding Officer (Speaker/Chairman) of the House.
- Kihoto Hollohan (1992) v. Zachilhu (1992): the SC invalidated paragraph 7's
- House rules provide a petition, notice, evidence and hearing route

COMPARATIVE NUANCE
- disqualification is adjudicated rather than treated as an unreasoned automatic vacancy.
- NOT: Anti-defection law is in the Ninth Schedule → Tenth Schedule (52nd Amdt 1985).
- NOT: Both split (1/3) and merger (2/3) are valid defences → only MERGER (2/3) survives; split was deleted (2003).
- NOT: The Speaker's decision is final and beyond courts → subject to judicial review (Kihoto Hollohan (1992)).

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.

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